

U.S. HISTORY HACK™ · AMERICA 250

Document-Based Investigation

Unit 1 · Standard **US.01** — The Homestead Act & the Transcontinental Railroad

The Homestead Act of 1862:
Who Gained a Homestead — and Who Lost a
Homeland?

TENNESSEE CONNECTION INSIDE — reason from your own state's land history

Standalone DBQ SKU · 6 verified public-domain documents · HIPPO (text) + OPTIC (visual) · Your first Document-Based Investigation · ISBN [to be assigned] · TroopToTeacher Technologies LLC
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All six documents are in the **public domain**, with honest provenance and a citable archive behind each asset (U.S. National Archives; Library of Congress; Nebraska State Historical Society, Solomon D. Butcher Collection; Beinecke Library, Yale University). The statute text is a **verbatim excerpt** of the Homestead Act of 1862 (12 Stat. 392); nothing here is composed and presented as a primary source. Pearson / McGraw Hill / Savvas are category references only.

Framework stack: Tennessee Academic Standards (US.01) first → RH/WHST literacy practices (cross-subject proof only; not marketed as Common Core per T.C.A. §49-6-2202) → AP U.S. History → C3 Framework → Inquiry Design Model (IDM).

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Tennessee Standards Alignment

Standard	Verbatim TDOE standard	Where	Depth
US.01	Explain how the Homestead Act and the Transcontinental Railroad impacted the settlement of the West — including their effects on American Indians, immigrants, and settlers.	This entire investigation	Full — the Act is the anchor source

Social Studies Practices exercised (SSP.01-06) — all Full

Practice	How this DBQ exercises it	Where
SSP.01 Collect from sources	Gather evidence from a 6-document set	Docs A-F
SSP.02 Examine a source	HIPPO (text) & OPTIC (visual) sourcing on every document	Every frame
SSP.03 Synthesize / compare	Weigh promise vs. cost across documents	Plan Your Evidence
SSP.04 Construct arguments	Write an evidence-based CER argument with a rubric	Write Your Argument
SSP.05 Historical awareness	Place the Act in its Civil-War-era context	Docs A-C
SSP.06 Geographic awareness	Read the 1890 rail map as spatial evidence	Doc D

Depth labeled honestly: **Full** = the standard is directly taught and assessed here.

What Is a DBQ? — How to Use This Investigation

This is your first Document-Based Investigation (DBQ). A DBQ asks you to be a historian: read a set of real primary sources, figure out what each one shows, and then use them as **evidence** to answer one big question. You are not looking for a single “right answer” in the back of the book — you are **building an argument** and backing it up.

Follow these five steps — in order

- 1 READ** each document and the short context note above it. For the two law excerpts, use the **Plain-Language** box if the old wording is hard.
- 2 SOURCE IT** — before you trust a source, ask who made it, when, and why. Fill in the **HIPPO** box (for text) or **OPTIC** box (for pictures) under each document.
- 3 SORT** your evidence using the three lenses: Who gained a homestead? · Who lost a homeland? · Who decided?

- 4 **PLAN** — put your best documents into the “Plan Your Evidence” organizer so every part of your answer has proof.
- 5 **WRITE** your argument using the thesis frame and the CER pattern (Claim · Evidence · Reasoning). Then check it against the rubric.

HIPPO (text sources) = **H**istorical context · **I**ntended audience · **P**oint of view · **P**urpose · **O**utside evidence.

OPTIC (pictures & maps) = **O**verview · **P**arts · **T**itle/Text · **I**nterrelationships · **C**onclusion.

The scaffolds fade on purpose. Documents **A-B** give you the full sourcing frames, **C-E** give reduced cues, and **F** asks you to source it on your own — because by then you can.

Difficulty key you'll see on questions: ★ **Entry** start here if this is new · ● **On-Level** the target for everyone · ▲ **Extension** push your thinking further. Need extra support? Use the **Scaffold & Language-Access Companion** alongside this book.

The Investigation

YOUR INVESTIGATION QUESTION

The Homestead Act of 1862 offered up to **160 acres** of Western land to anyone who would live on it and farm it for five years. Using the documents, answer: **Who gained a homestead — and who lost a homeland?**

As you read, sort every piece of evidence into one of these three lenses. You will use them again when you plan and write.

Who gained a homestead?

Settlers, immigrants, and (after 1866) freedpeople; the railroads that sold and served the land

Who lost a homeland?

American Indian nations whose land the Act called “unappropriated” and opened to settlement

Who decided?

Congress, the federal land office, and the railroads granted millions of acres

A note on hard history. Document F shows a Native child changed by a government boarding school, and the law in Documents A-B calls Native homeland “unappropriated.” We study these honestly — as a historian would — to understand both what settlers gained and what Native nations lost. No conclusion is handed to you; you weigh the evidence.

Before You Investigate — Activate & Predict

You have not read the documents yet. Historians predict first, then test the prediction against the evidence — and change their minds when the evidence says so. Warm up your thinking, then make your best guess. You will come back to this page after Document F.

1 · What do you already know?

PRIOR KNOWLEDGE

List two things you have heard, seen, or learned about Americans moving West in the 1800s (movies, family stories, and earlier grades all count).

2 · Preview four key words — guess first

Word	My best guess at the meaning	What it really meant (fill in after you read)
homestead		
public land		
patent		
unappropriated		

3 · Make your prediction

MY PREDICTION (we will test it)

a. Who do you think **gained** the most from the Homestead Act, and why?

b. Who might have **lost** something, and why?

The Documents

Document A — The Homestead Act of 1862 — Who Could Claim the Land

HIPPO · TEXT

Sec. 1. Be it enacted ... That any person who is the head of a family, or who has arrived at the age of twenty-one years, and is a citizen of the United States, or who shall have filed his declaration of intention to become such ... and who has never borne arms against the United States Government or given aid and comfort to its enemies, shall ... be entitled to enter one quarter section [160 acres] or a less quantity of unappropriated public lands ... subject to preemption at one dollar and twenty-five cents, or less, per acre.

Sec. 2. ... That the person applying ... shall make affidavit ... that such application is made for his or her exclusive use and benefit, and that said entry is made for the purpose of actual settlement and cultivation, and not either directly or indirectly for the use or benefit of any other person ... and on payment of ten dollars, he or she shall thereupon be permitted to enter the quantity of land specified.

PLAIN-LANGUAGE MEANING

Any adult head of a family, or anyone 21 or older, who was a U.S. citizen (or was becoming one) and had not fought against the Union, could claim up to 160 acres of public land in the West. They paid a small filing fee and promised the land was for their own farm — not secretly for someone else.

Source: Homestead Act of 1862, 12 Stat. 392 (37th Cong., Sess. II, ch. 75); approved May 20, 1862. General Records of the U.S. Government, RG 11, U.S. National Archives. Verbatim transcription: National Archives & State Historical Society of North Dakota. Public domain (U.S. statute).

Signed during the Civil War, the Act opened federal “public” land in the West to ordinary settlers — including immigrants and, after 1866, freedpeople.

● **Guiding question:** According to the law itself, **who could** claim a homestead — and what did the word “unappropriated” public land assume about who was already there?

▲ **Honors:** The Act barred anyone who had “borne arms against” the U.S. Whose land claims did that clause reward, and how does it tie the Act to the Civil War?

HIPPO — analyze this text source (Full scaffold)

H — Historical context When/where was this written, and what was happening?	
I — Intended audience Who was meant to read or obey it?	
P — Point of view Whose interests does it serve — and who is left out?	

P — Purpose
Why was it created?

O — Outside evidence
What do you already
know that connects?

Document B — The Homestead Act of 1862 — Prove It Up, or Lose It

HIPPO · TEXT

... no certificate shall be given, or patent issued therefor, until the expiration of **five years** from the date of such entry; and if, at the expiration of such time ... the person making such entry ... shall prove by **two credible witnesses** that he, she, or they have resided upon or cultivated the same for the term of five years ... and shall make affidavit that no part of said land has been alienated ... then ... if at that time a citizen of the United States, [they] shall be entitled to a patent.

... if ... it shall be proven ... that the person having filed such affidavit shall have actually changed his or her residence, or abandoned the said land for more than **six months** at any time, then ... the land so entered shall **revert to the government**.

PLAIN-LANGUAGE MEANING

You did not own the land right away. You had to live on it and farm it for five years, then bring two witnesses to prove it. Only then did you receive the 'patent' — the legal title. If you left the land for more than six months, you lost your claim and it went back to the government.

Source: Homestead Act of 1862, 12 Stat. 392 (37th Cong., Sess. II, ch. 75); approved May 20, 1862. General Records of the U.S. Government, RG 11, U.S. National Archives. Verbatim transcription: National Archives & State Historical Society of North Dakota. Public domain (U.S. statute).

The land was not a gift. Section-by-section, the Act set the terms a settler had to meet over five years before the government would grant legal title.

● **Guiding question:** What did a settler have to **do** to turn a claim into ownership — and who would struggle most to meet a five-year residence rule?

▲ Honors: A separate clause let a settler “commute” the claim by paying \$1.25/acre. Who could afford to buy out early, and how might that advantage the wealthy?

HIPPO — analyze this text source (Full scaffold)

H — Historical context
When/where was this
written, and what was
happening?

I — Intended audience
Who was meant to read
or obey it?

P — Point of view
Whose interests does it serve — and who is left out?

P — Purpose
Why was it created?

O — Outside evidence
What do you already know that connects?

Document C — Driving the Last Spike, Promontory Summit, 1869

OPTIC • PHOTO



Source: Russell, Andrew J. East and West Shaking Hands at the Laying of the Last Rail, Promontory Summit, Utah Territory, May 10, 1869. Public domain. (Held: Yale Collection of Western Americana.)

The Transcontinental Railroad — the other half of standard US.01 — met here in 1869, carrying settlers, mail, and goods to the lands the Homestead Act opened.

● **Guiding question:** The photograph stages a national triumph. **Who is pictured** celebrating — and which workers (Chinese, Irish) and which displaced nations are not in the frame?

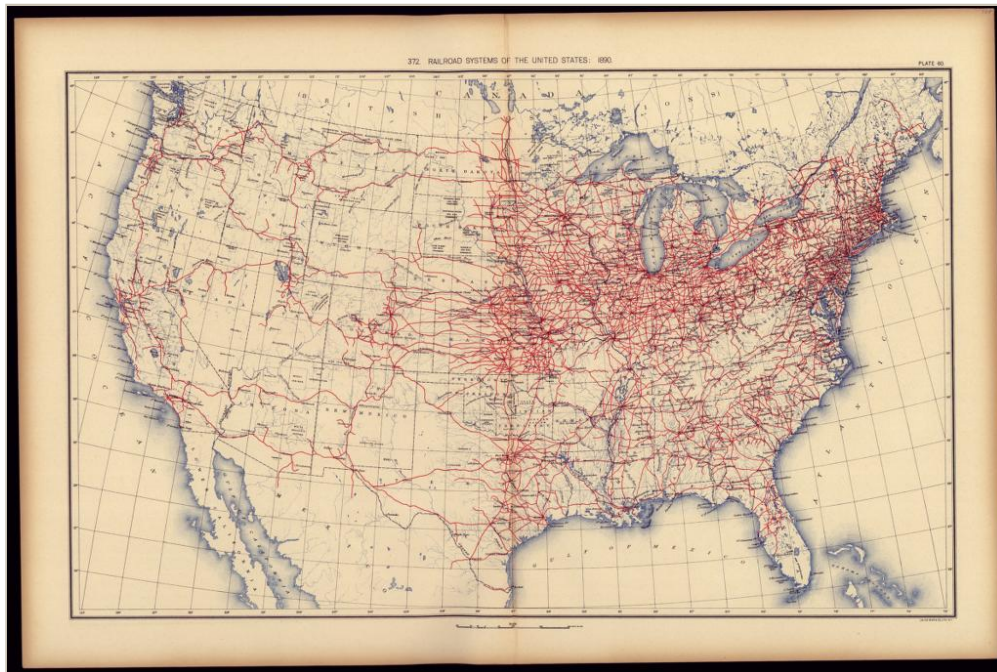
▲ Honors: This image was carefully posed for the press. How does that staging shape the story Americans told themselves about “winning” the West?

OPTIC — visual primary source (its own document) (Reduced cues)

P — Parts
People, objects, details

I — Interrelationships

How they connect

C — ConclusionWhat it shows about
gain or loss**Document D — Railroad Systems of the United States, 1890****OPTIC · MAP**

Source: Railroad Systems of the United States: 1890 (Plate 60). Henry Gannett / U.S. Census Office, Statistical Atlas of the United States. Library of Congress, Geography & Map Division. Public domain.

By 1890 rail lines webbed the continent — dense in the East, reaching across the very Plains and mountain West that had been home to Native nations.

● **Guiding question:** Read this **as geography** (SSP.06): where are the lines thickest, and whose homelands did the new western lines cross to reach open land?

▲ **Honors:** Compare the western rail pattern to where the Homestead Act land lay. How did rail access decide which homesteads could actually succeed?

OPTIC — visual primary source (its own document) (Reduced cues)**P — Parts**

People, objects, details

I — Interrelationships

How they connect

C — Conclusion
What it shows about
gain or loss

Document E — A Homestead Family ‘Proved Up,’ Custer County, Nebraska, 1886

OPTIC · PHOTO



Source: Butcher, Solomon D. Sod house of the Sylvester Rawding family, north of Sargent, Custer County, Nebraska. 1886. Nebraska State Historical Society, Solomon D. Butcher Collection. (Copy: Library of Congress, LC-USZ62-8276.) Public domain.

On the treeless Plains, homesteaders built houses of cut sod. This family posed with their animals and possessions to record that they had made it — note the cow on the roof.

● **Guiding question:** For **this** family, what did the Homestead Act deliver? List two pieces of visual evidence that the promise of land was real for some settlers.

▲ Honors: Butcher sold these photos to homesteaders as proof of success. How might that purpose make the image an argument, not just a record?

OPTIC — visual primary source (its own document) (Reduced cues)

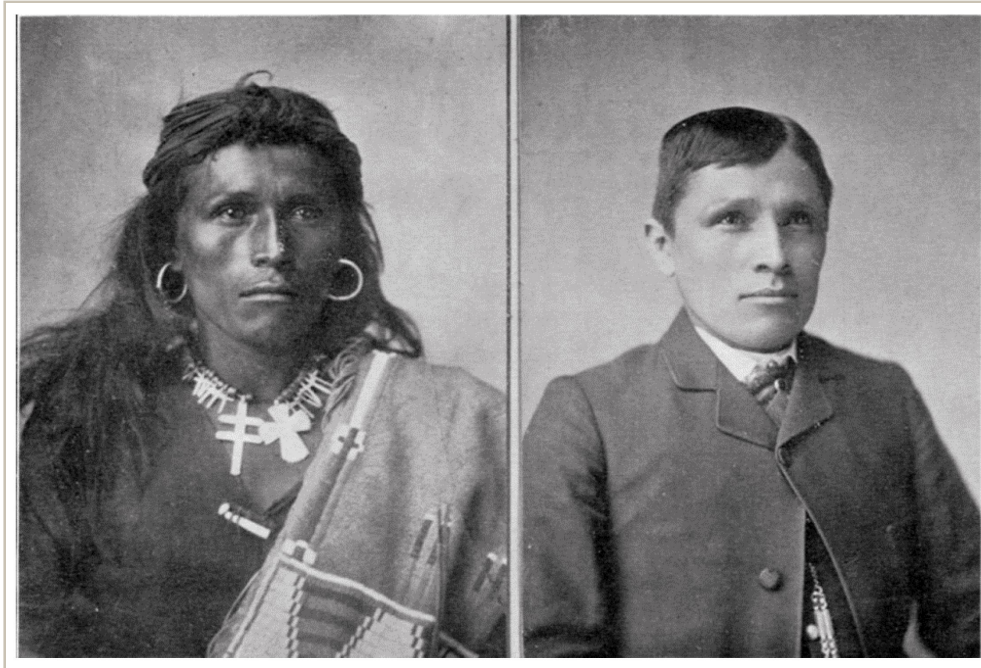
P — Parts
People, objects, details

I — Interrelationships
How they connect

C — Conclusion
What it shows about
gain or loss

Document F — Tom Torlino, Navajo — Carlisle Indian School, 1882 & 1885

OPTIC · PHOTO



Source: Choate, John N. Tom Torlino, Navajo — on arrival (1882) and after about three years (1885) at the Carlisle Indian Industrial School, Pennsylvania. Carlisle Indian School Digital Resource Center / Richard Henry Pratt Papers, Beinecke Library, Yale University. Public domain.

The “unappropriated” land of the Act was Native homeland. As it was opened to settlers, the U.S. pressed Native children into boarding schools whose motto was “Kill the Indian, save the man.”

● **Guiding question:** These two photographs of the **same young man** were paired on purpose. What transformation do they record — and what cost of westward settlement does that pairing make visible?

▲ **Honors:** Who created this before/after pairing, and for what audience? How does that purpose change how you weigh it as evidence of “progress”?

OPTIC — analyze this visual source independently (Independent)

Tennessee Connection

REASON FROM YOUR OWN STATE'S LAND HISTORY.

Tennessee sits on **both** sides of this question. Thousands of Tennesseans joined the westward migration the Homestead Act encouraged, leaving worn-out farms for a fresh

160 acres. But Tennessee also knew the other side first-hand: a generation earlier, the same federal power that opened western land had forced the **Cherokee** from East Tennessee on the **Trail of Tears (1838)** — the land many Tennesseans farmed had itself once been Native homeland.

How does Tennessee's own story — settlers heading west, and Native nations pushed off their land — help you answer “who gained a homestead and who lost a homeland”?

TENNESSEE REASONING — write two sentences

Plan Your Evidence

Before you write, load your best proof into this organizer. Every row of your argument needs a document.

Lens	Who / what to look for	Best docs	Your evidence + why it matters
Who gained a homestead?	Settlers, immigrants, and (after 1866) freedpeople; the railroads that sold and served the land	A, B, E	
Who lost a homeland?	American Indian nations whose land the Act called “unappropriated” and opened to settlement	D, F	
Who decided?	Congress, the federal land office, and the railroads granted millions of acres	A, C, D	

Write Your Argument

Prompt. Using at least **three** documents and your Tennessee Connection, answer the investigation question: **Who gained a homestead — and who lost a homeland?** Source at least **one** document (name its point of view or purpose). Aim for one strong paragraph (or more for **▲ Extension**).

Thesis frame (fill in): “The Homestead Act gave _____ to _____, but it came at the cost of _____ for _____; therefore _____.”

CER pattern: **Claim** (your answer) → **Evidence** (“Document ___ shows ___”) → **Reasoning** (“This matters because ___”). Repeat for each lens.

Score Yourself — Rubric

Criterion	4 — Exceeds	3 — Meets (target)	2 — Approaching	1 — Beginning
Thesis (Claim)	Defensible claim that answers “for whom?” with nuance	Clear claim that takes a position	Claim mostly restates the prompt	No clear claim
Evidence — documents	Uses ≥4 documents accurately as evidence	Uses 3 documents accurately	Uses 2 documents	0–1 documents
Sourcing (HIPPO/OPTIC)	Sources ≥2 docs (names POV or purpose)	Sources 1 doc	Attempts sourcing	No sourcing
Analysis — gain & cost	Weighs who gained and who lost, with reasoning	Names both a gain and a cost	One-sided	Summary only
Tennessee Connection	Uses a Tennessee example as evidence	Mentions a Tennessee example	Vague TN reference	None

Self-grade on the rubric, then (if your class uses the app) enter your thesis for real-time feedback and revise. Sensitive documents (D, F) are analyzed historian-grade: you examine documented intent and consequences from the evidence — no conclusion is handed to you.